

California Medmal Whitepaper

AI Medical Malpractice Intake in California: MICRA Reform, CCP § 364, and Pure Comparative Fault

****State:**** California

****Primary Statutes:**** MICRA (Medical Injury Compensation Reform Act), CCP § 364

****SOL:**** 1 year from discovery / 3-year statute of repose

****Damage Caps:**** \$250,000 (MICRA, recently indexed by SB 847)

****Fault Doctrine:**** Pure comparative fault

#Executive Summary

California's MICRA framework has governed medical malpractice litigation for nearly five decades. With recent reforms under Senate Bill 847 adjusting the \$250,000 cap for inflation, and strict pre-filing notice requirements under CCP § 364, California presents unique challenges and opportunities for plaintiff firms. This whitepaper examines how AI is transforming med mal intake in the Golden State.

#The California MedMal Landscape

##Statute of Limitations

California applies a 1-year statute of limitations from the date of discovery of the injury, with a maximum 3-year statute of repose from the date of the alleged wrongful act. The 3-year repose does not apply in cases of fraud, intentional concealment, or the presence of a foreign body.

##Pre-Filing Notice (CCP § 364)

California law requires a 90-day notice of intention to file a lawsuit before commencing a medical malpractice action. The notice must include:

- A statement of the legal theory
- The nature of the injuries suffered
- A demand for arbitration (if applicable)

Filing without this notice can result in automatic dismissal.

##MICRA Damage Caps

Senate Bill 847 (2022) modernized MICRA's damage caps:

- ****\$250,000**** initial cap for non-economic damages against individual providers
- Increases to ****\$350,000**** after 10 years, then ****\$50,000 annual increments**** for 20 years
- Maximum cap of ****\$1,000,000**** for non-economic damages against all defendants
- ****\$500,000**** cap for catastrophic injury cases

#How LexiFlow Addresses California's Unique Challenges

##MICRA-Aware Case Valuation

MeritScan incorporates California's MICRA caps into its valuation engine, understanding the distinction between capped non-economic damages and uncapped economic damages (medical expenses, lost

earnings).

##90-Day Notice Compliance

The AI intake system automatically tracks the 90-day pre-filing notice requirement, alerting firms when deadlines approach and ensuring no case is filed without proper notice.

##Pure Comparative Fault Assessment

California's pure comparative fault system allows recovery even if the plaintiff is 99% at fault (reduced proportionally). Unlike Texas's 51% bar, California's standard is more plaintiff-friendly - and LexiFlow's scoring reflects this.

#ROI for California Firms

Metric	Manual Process	LexiFlow AI
Time to merit assessment	1-2 weeks	3 minutes
Cost per case screened	\$1,200-\$1,800	\$75-\$150
Pre-filing notice compliance	Manual tracking	Automated
Case value assessment accuracy	Variable	Standardized

#Conclusion

California's hybrid of strict pre-filing requirements and relatively plaintiff-friendly comparative fault rules demands sophisticated case screening. AI-powered intake gives California firms the tools to navigate MICRA caps, CCP § 364 compliance, and accurate case valuation - all at \$69/month.

LexiFlow Legal Suite - \$69/month. leads@lexiflow.co